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April 15, 2025

ENGROSSED HOUSE
BILL NO. 1764

By: Kerbs and Hall of the House

and

Hamilton of the Senate

An Act relating to public lands; amending Section 1, Chapter 175, O.S.L. 2024 (64 O.S. Supp. 2024, Section 1097), which relates to unauthorized camps; prohibiting use of county- or municipal-owned lands for unauthorized camps; authorizing counties and municipalities to opt out of prohibition; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 175, O.S.L.
2024 (64 O.S. Supp. 2024, Section 1097), is amended to read as
follows:

Section 1097. A. As used in this section, "unauthorized camp" means any tent, shelter, or bedding constructed or arranged for the purpose of or in such a way to permit overnight use on a property not designated as a campsite.

B. Persons may not use state-owned, county-owned, or municipal-
owned lands for the purposes of establishing an unauthorized camp.

C. Any person who violates the provisions of this section shall, upon conviction, be guilty of a misdemeanor punishable by a

1 fine not to exceed Fifty Dollars (\$50.00) or by imprisonment in the
2 county jail not to exceed fifteen (15) days, or by both such fine
3 and imprisonment. However, a person who commits a first violation
4 of this section shall be issued a warning, and a citation may not be
5 issued unless the person refuses any assistance offered to them by
6 the arresting officer. Such assistance may include, but is not
7 limited to, transportation to a shelter, food pantry, or other place
8 where resources are made available to assist the indigent and
9 homeless.

10 D. The governing body of any county or municipality may opt out
11 of this section by a majority vote of the governing body.

12 SECTION 2. This act shall become effective November 1, 2025.

13 COMMITTEE REPORT BY: COMMITTEE ON LOCAL AND COUNTY GOVERNMENT
14 April 15, 2025 - DO PASS
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